

Analysis

Mail service was completed at an address for the attorney of Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,323.11, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$358.61, according to a memo filed by the Plaintiff.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,681.72.

Plaintiff shall prepare and submit an Order and Judgment.

14. 9:00 AM CASE NUMBER: L25-12915
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. JEREMY
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: JEREMY, JEREMY
TENTATIVE RULING:

Background

Defendant filed a Motion to Quash the Summons on 1/26/26, arguing that service of process was invalid. Specifically, Defendant claims that he was never personally served.

Plaintiff opposes the Motion, arguing that personal service was effected by a registered process server, as reflected in the filed Proof of Service. Plaintiff also seems to allude to substitute service in their response, but the Proof of Service reflects personal service only, and there is no evidence that Plaintiff subsequently mailed process documents to the Defendant.

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, even assuming for the sake of argument that personal service did not occur, the Defendant appears to concede that he, in fact, received copies of the Summons and Complaint, when he wrote, in his Motion, “The papers were later found left unattended on the front porch,” and he attached apparent photos of the process server leaving the documents at his residence.

This suggests to the court that, by a preponderance of the evidence, Defendant has been served with process.

The timing of this service, however, is a bit unclear.

The court will grant leave to file his Answer within 10 days of this Order.

Disposition

Defendant’s Motion is **denied**.

However, Defendant to file Answer within 10 days of this Order.

Plaintiff shall prepare and submit the Order.

15. 9:00 AM CASE NUMBER: L25-14576
CASE NAME: U.S. BANK NATIONAL ASSOCIATION VS. YANA MAYFIELD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Demurrer to the Complaint, which alleges Breach of Contract as the sole cause of action, and also moved to strike the request, in the Complaint, for attorney fees.

The Complaint alleges damages of \$17,394.37, resulting from Defendant’s failure to repay Plaintiff for money that Plaintiff lent to Defendant, and also seeks the recovery of court costs.

The Complaint contains the copy of the purported written agreement.

Analysis